

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALENA E. CALDER,

Petitioner

VS.

LUDWIG C. CALDER,

Respondent

) Case Number: FDI-25-801764

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: STATUS ONLY DISSOLUTION; REQUEST FOR ORDER STATUS
ONLY DISSOLUTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Alena Calder (Mother) and Respondent Ludwig Calder (Father). They share six minor children: Elias (7/1/10), Liora (10/7/11), David (10/25/14), Tanya (8/5/17), Charles (1/16/19), and Sariel (3/27/22).
- 2) On 8/1/25, Mother filed a Petition for Dissolution. In her pleadings, Mother indicates the date of marriage is 10/17/09 and date of separation is 8/1/25, for a marriage of 14 years and 8 months.
- 3) On 1/22/26, Mother filed a Request for Order seeking bifurcation of trial and termination of marital status. Attached to Mother's Request for Order is form FL-315 (Request for Separate Trial). Mother concurrently filed a Memorandum of Points and Authorities. This matter was set for hearing on 4/16/26.
- 4) On 1/22/26, Mother filed a Proof of Service indicating her 1/22/26 Request for Order was served on Father by e-mail on 1/22/26.

- 1 5) On 1/22/26, Mother filed a Declaration Regarding Service of Declaration of Disclosure and
2 Income and Expense Declaration stating that Mother's Preliminary Declaration of Disclosure was
3 served on Father by e-mail on 1/16/26.
 - 4 6) Father did not file a Responsive Declaration.
 - 5 7) On 1/30/26, Mother filed a second Request for Order seeking bifurcation of trial and termination
6 of marital status. Attached to Mother's Request for Order is form FL-315 (Request for Separate
7 Trial). Mother concurrently filed a Memorandum of Points and Authorities.
 - 8 8) On 1/30/26, Mother filed a Proof of Service indicating her 1/30/26 Request for Order was served
9 on Father by e-mail on 1/22/26.
 - 10 9) On 4/13/26, Father filed a filed a Declaration Regarding Service of Declaration of Disclosure and
11 Income and Expense Declaration stating that Father's Preliminary Declaration of Disclosure was
12 served on the other party's attorney by e-mail on 4/12/26.
 - 13 10) On 4/14/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order,
14 which states he does not consent to bifurcation and termination of marital status unless the
15 conditions set forth in Family Code section 2337 are imposed. However, Father asserts that he
16 and the children may face eviction if bifurcation and termination is granted because his father-in-
17 law who is his landlord threatened a lawful detainer action. Father states he was recently
18 diagnosed with Follicular Lymphoma and bifurcation and termination could affect his Medi-Cal
19 eligibility. Father requests Family Code section 271 sanctions for Mother's pattern of non-
20 compliance and failure to return "original identity documents" as ordered on 10/23/25.
 - 21 11) On 4/14/26, Father filed a supplemental declaration asserting that Mother's Request for Order
22 was incomplete as it lacked sufficient facts to prove that bifurcation and termination of marital
23 status won't prejudice Father. Father alleges Mother failed to meet and confer regarding
24 bifurcation and termination of marital status.
 - 25 12) On 4/14/26, Father filed Respondent's Exhibit Packet in Support of Responsive Declaration and
26 Supplemental Declaration. Father attached a letter dated 12/3/25 that shows the landlord intends
27 to initiate a lawful detainer action against Father for unpaid rent.
 - 28 13) On 4/14/26, Father filed an Income and Expense Declaration.
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1 14) The Court notes that related case no. FDV-25-801764 is set for trial in Dept. 403 on 7/28/26,
2 7/29/26, 7/30/26, and 8/4/26.

3 **B. Findings and Order**

- 4 1) Public policy favors bifurcation and termination of marital status.
- 5 2) Since denial of such a request would conflict with public policy, the opposing party must
6 show compelling evidence that actual prejudice would result; procedural objections do not
7 constitute compelling evidence. (See *Gionis v. Sup.Ct.* (1988) 202 CCA3d 786, 788-90).
- 8 3) Based on the pleadings filed with the Court and signed under penalty of perjury, the Court finds
9 that Father did not meet this burden. The Court further finds that:
- 10 a. Mother filed a Petition for Dissolution on 8/1/25.
- 11 b. Under Family Code section 2339(a), the Court first acquired jurisdiction over Father
12 when Father was served with Mother's Petition and Summons on 8/7/25.
- 13 c. Father did not file a Response and Request for Dissolution.
- 14 d. Within the Petition, Mother indicates that both parties were residents of California for at
15 least six months and of San Francisco County for at least three months immediately
16 preceding the filing of the Petition.
- 17 e. Within the Petition, Mother requests a divorce based on irreconcilable differences.
- 18 f. On 1/22/26, Mother filed a Declaration Regarding Service of Declaration of Disclosure
19 and Income and Expense Declaration stating that Mother's Preliminary Declaration of
20 Disclosure was served on Father by e-mail on 1/16/26.
- 21 g. On 4/13/26, Father filed a Declaration Regarding Service of Declaration of
22 Disclosure and Income and Expense Declaration stating that Father's Preliminary
23 Declaration of Disclosure was served on the other party's attorney by e-mail on 4/12/26.
- 24 h. In form FL-315 (Request for Separate Trial), which Mother attached to her 1/30/26
25 Request for Order, Mother responded "NONE" to the prompt "All pension or retirement
26 plans in which the community has an interest are listed below." Father did not allege any
27 pension or retirement plans in which the community has an interest in his responsive
28 pleadings. The Court therefore finds that there are no retirement plans that need to be
29 joined in this action under Family Code section 2337(d).

- 1 4) Based on the foregoing, Mother's request to bifurcate and terminate the parties' marital status is
2 GRANTED. Each party is restored to their previous single status as of 4/23/26. The Court finds
3 that this termination date meets the requirement set forth in Family Code section 2339(a).
- 4 5) As set forth in the attached Bifurcation of Status of Marriage (FL-347), the protections of Family
5 Code section 2337(c)(1)-(6) shall apply.
- 6 6) The parties are reminded that despite the termination of their marital status the Standard Family
7 Law Restraining Orders set forth in the Summon continue to apply to both parties per Family
8 Code section 233(a).
- 9 7) The Court's jurisdiction to adjudicate all remaining issues in this dissolution matter is reserved.
- 10 8) Counsel for Mother shall prepare the Findings and Order After Hearing and shall also submit a
11 judgment terminating marital status and reserving the Court's jurisdiction over all other issues
12 (with an FL-347 that mirrors the terms of the FL-347 attached hereto).
- 13 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
14 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
15 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
16 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
17 proposed order after hearing directly to the court. Failure to submit the order after hearing within
18 10 days may allow the other party to prepare a proposed order and submit it to the court in
19 accordance with CA Rules of Court, Rule 5.125(d).
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PETITIONER: ALENA E. CALDER	CASE NUMBER:
RESPONDENT: LUDWIG C. CALDER	FDI - 25 - 801764

BIFURCATION OF STATUS OF MARRIAGE OR DOMESTIC PARTNERSHIP

ATTACHMENT TO ☐ JUDGMENT (FL-180) ☒ FINDINGS AND ORDER AFTER HEARING (FL-340)

The court grants the request of ☒ petitioner ☐ respondent to bifurcate and grant a separate trial on the issue of the dissolution of the status of the marriage or domestic partnership apart from other issues.

Date marital or domestic partnership status ends (specify): 4/23/26

THE COURT FINDS

1. A preliminary declaration of disclosure with a completed schedule of assets and debts and income and expense declaration has been served on the nonmoving party, or the parties have stipulated in writing to defer service of the preliminary declaration of disclosure until a later time.
2. Each retirement or pension plan of the parties has been joined as a party to the proceeding for dissolution unless joinder is precluded or made unnecessary by applicable law.

THE COURT ORDERS

3. a. To preserve the claims of each party in all retirement plan benefits on entry of judgment granting a dissolution of the status of the marriage or domestic partnership, the court makes one of the following orders for each retirement plan in which either party is a participant:
 - (1) A final domestic relations order or qualified domestic relations order under Family Code section 2610 disposing of each party's interest in retirement plan benefits, including survivor and death benefits.
 - (2) An interim order preserving the nonemployee party's right to retirement plan benefits, including survivor and death benefits, pending entry of judgment on all remaining issues.
 - (3) A provisional order on *Pension Benefits—Attachment to Judgment* (form FL-348) incorporated as an attachment to the judgment of dissolution of the status of marriage or domestic partnership (*Judgment (Family Law)* (form FL-180)). This order provisionally awards to each party a one-half interest in all retirement benefits attributable to employment during the marriage or domestic partnership.

b. Name of plan:

N/A

Type of order attached

3a(1) 3a(2) 3a(3)

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☐ See attachment 3b for additional plans.

- c. The moving party must promptly serve on the retirement or pension plan administrator a copy of any order entered under items a and b above and a copy of the judgment granting dissolution of the status of the marriage or domestic partnership (form FL-180).
4. Jurisdiction is reserved for later determination of all other pending issues in this case.
5. The court makes the following additional orders as conditions for granting the severance on the issue of dissolution of the status of marriage or domestic partnership. In the case of the moving party's death, the order continues to be binding on that moving party's estate and will be enforceable against any asset, including the proceeds thereof, to the same extent that these obligations would have been enforceable before the person's death.
 - a. ☒ **Division of property**
 The ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any ☒ taxes, ☒ reassessments, ☒ interest, and ☒ penalties payable by the other party in connection with the division of the community estate that would not have been payable if the parties were still married or domestic partners at the time the division was made.

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5. b. ☒ **Health insurance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must maintain all existing health and medical insurance coverage for the other party, and that party must also maintain any minor children as named dependents, as long as that party is eligible to do so. If at any time during this period the ☒ petitioner ☐ respondent is not eligible to maintain that coverage, that party must, at his or her sole expense, provide and maintain health and medical insurance coverage that is comparable to the existing health and medical insurance coverage to the extent it is available.

If that coverage is not available, the ☒ petitioner ☐ respondent is responsible for paying the health and medical care for the other party and the minor children to the extent that care would have been covered by the existing insurance coverage but for the dissolution of marital status or domestic partnership, and will otherwise indemnify and hold the other party harmless from any adverse consequences resulting from the loss or reduction of the existing coverage. "Health and medical insurance coverage" includes any coverage under any group or individual health or other medical plan, fund, policy, or program.

c. ☒ **Probate homestead**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in a termination of the other party's right to a probate homestead in the residence in which the other party resides at the time the severance is granted.

d. ☒ **Probate family allowance**

Until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the rights of the other party to a probate family allowance as the surviving spouse or surviving domestic partner.

e. ☒ **Retirement benefits**

Except for any retirement plan, fund, or arrangement identified in any order issued and attached as set out in paragraph 3, until judgment has been entered on all remaining issues and has become final, the ☒ petitioner ☐ respondent must indemnify and hold the other party harmless from any adverse consequences to the other party if the bifurcation results in the loss of the other party's rights with respect to any retirement, survivor, or deferred compensation benefits under any plan, fund, or arrangement, or to any elections or options associated with them, to the extent that the other party would have been entitled to those benefits or elections as the spouse or surviving spouse or the domestic partner or surviving domestic partner of the moving party.

f. ☒ **Social security benefits**

The moving party must indemnify and hold the other party harmless from any adverse consequences if the bifurcation results in the loss of rights to social security benefits or elections to the extent the other party would have been entitled to those benefits or elections as the surviving spouse or surviving domestic partner of the moving party.

g. ☐ **Beneficiary designation - Nonprobate transfer**

Attachment 5(g), Order Re: Beneficiary Designation for Nonprobate Transfer Assets, will remain in effect for each covered asset until the division of any community interest therein has been completed.

h. ☐ **Individual Retirement Accounts**

Attachment 5(h), Order Re: Division of IRA Under Internal Revenue Code Section 408(d)(6), has been issued to preserve the ability of ☐ petitioner ☐ respondent to defer distribution of his or her community interest on the death of the IRA owner.

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5. i. ☐ **Enforcement of community property rights**

Good cause exists to make additional orders as set out in Family Code section 2337(c)(9). See Attachment 5(i).

j. ☐ **Other conditions that are just and equitable**

Other:

6. Number of pages attached: 0

WARNING: *Judgment (Family Law)* (form FL-180) (status only) must be completed in addition to this form for the status of the marriage or domestic partnership to be ended.